Letter to Flat Buyer – Parking Obstruction

WITHOUT PREJUDICE

From: Hrushaabh Mishra [Flat No. ___, Building / Society Name] [Address, City – PIN] [Phone / Email]

To: Mr. [Buyer's Full Name] [Flat No. ___, Building / Society Name] [Address, City – PIN]

Date: [DD/MM/YYYY]

Mode of delivery: By hand (with acknowledgement) / Registered Post A.D. / Email

Subject: Obstruction of my parking spaces and request for amicable resolution regarding parking slot No. [___] and two-wheeler parking

Reference: Agreement for Sale / Sale Deed dated [DD/MM/YYYY] for Flat No. [***] ***(registered at [Sub-Registrar office], Document No. [***])

Dear Mr. [Buyer's Name],

1. Background

1.1 As you are aware, by the Sale Deed referred to above, I sold Flat No. [___] to you along with the right to use one car parking space.

1.2 At the time of the transaction, the parking arrangement in our area consisted of four car parking spaces (including yours) which were meant to be used on an **interchangeable / flexible basis**, so that all four vehicles could enter, exit and manoeuvre without obstructing one another.

1.3 At your specific insistence, and in good faith, I agreed that you would be allotted **one fixed parking space, namely slot No. [___]**. I agreed to this on the clear understanding that your use of that slot would not interfere with the use of, and access to, the remaining three parking spaces retained by me.

2. Present difficulties

2.1 **Fixed slot affecting my parking:** Owing to the location of the fixed slot, the free movement of my three cars has been considerably restricted. Entry, exit and turning of my vehicles have become difficult.

2.2 **Two-wheelers parked around my spaces:** In addition, you have recently begun parking your two-wheelers (motorcycles / scooters) around and alongside my three parking spaces. As a result, my vehicles are now **hemmed in on three sides**, and I am frequently unable to take my cars out or bring them in without the bikes first being moved.

2.3 Your sale included **one car parking space only**. It did not include any right to park two-wheelers in the spaces, aisles or margins adjoining my parking, nor any right to obstruct the access way to my parking spaces. Such use obstructs my lawful right of access and peaceful enjoyment of my own parking spaces, causes daily inconvenience, and creates a safety risk in case of an emergency.

3. My future requirement – Electric Vehicle and charger

3.1 I intend to purchase an **electric SUV** in the near future. Being an SUV, it will require a **larger turning radius** and a clear manoeuvring area to enter and leave its parking space safely.

3.2 I will also need to install an **EV charging point** at my parking space. For safe installation and use, the area around the charger and the charging cable route must be kept **free of two-wheelers and other obstructions**. Vehicles parked close to a charging point create a risk of damage to the equipment, tripping hazards, and fire / electrical safety concerns.

3.3 The present arrangement, with your bikes surrounding my spaces, makes both of these requirements impossible.

4. My requests

In the interest of good neighbourly relations, I request you to kindly:

(a) **Immediately stop parking your two-wheelers** around, alongside or in front of my three parking spaces and in the access aisle / driveway leading to them, and park them only in the designated two-wheeler area of the society / building;

(b) Keep the **driveway and manoeuvring area clear at all times**, so that all vehicles, including my future electric SUV, can enter and exit freely;

(c) Keep the area around my proposed **EV charging point** completely free of any vehicle or object;

(d) Meet with me, preferably within **15 (fifteen) days** of receiving this letter, to discuss a practical re-arrangement — for example, shifting your fixed slot to a location that does not block the other spaces, or reverting to the originally intended interchangeable arrangement — so that all four cars can be parked and moved without hindrance. If helpful, the Secretary / Managing Committee of the society may also be present.

5. Conclusion

I wish to resolve this matter amicably, and I am confident that you will appreciate the practical difficulties explained above. However, if the obstruction continues and no workable solution is reached within the period mentioned, I shall be constrained, without further notice, to raise the matter with the Managing Committee of the society and, if necessary, to take such legal steps as may be available to me to protect my rights of access and use of my parking spaces, entirely at your risk as to costs and consequences.

This letter is written without prejudice to all my rights and remedies, which are expressly reserved.

I look forward to your positive response and cooperation.

Yours sincerely,

Hrushaabh Mishra

Copy to: The Secretary, [Society Name] Co-operative Housing Society, [Address] – for information, record and necessary action.

Enclosures (if any): Copy of Sale Deed (relevant page on parking); parking layout sketch; photographs of the obstruction dated [___].